

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1376

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 34-1404, IDAHO CODE, TO REVISE PROVISIONS REGARDING DECLARATIONS OF CANDIDACY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-1404, Idaho Code, be, and the same is hereby amended to read as follows:

34-1404. DECLARATION OF CANDIDACY. (1) Candidates for election in any political subdivision shall be nominated by nominating petitions, each of which shall bear the name of the nominee, the office for which the nomination is made, the term for which nomination is made, and the signature of not less than five (5) electors of the candidate's specific zone or district of the political subdivision and shall be filed with the county clerk of the political subdivision.

(2) The clerk of each political subdivision shall provide to the county clerk an accurate and detailed map of all subdistricts of the political subdivision no later than January 1 of each year in which an election may be held.

~~(2)~~ (3) The form of the nominating petition shall be as provided by the county clerk and shall be uniform for all political subdivisions.

~~(3)~~ (4) The nomination petition shall be filed beginning at 8:00 a.m. on the twelfth Monday before the election and no later than 5:00 p.m. on the tenth Friday before such election. The county clerk shall notify the clerk of the political subdivision ~~shall notify the county clerk within twenty-four (24) hours of receipt~~ of the filing and verify the qualifications of the nominees ~~and shall, no more than seven (7) five (5) days after the close of filing, certify the nominees to be placed on the ballot of the political subdivision.~~

(5) Within forty-eight (48) hours of receipt of such notification, the clerk of the political subdivision shall review and certify to the county clerk the nominees to be placed on the ballot of the political subdivision.

~~(4)~~ (6) Nominating petitions shall include campaign contact information for candidates, including phone numbers and email addresses.

~~(5)~~ (7) All information in nominating petitions shall be made publicly available upon request.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.